

Module 1 Completion Volume

Chapters 1.4 to 1.13 — DPSP, Parliament, Executive, Judiciary, Centre-State Relations, Local Government, Finance Commissions, Constitutional Bodies, Amendments and the Governance Harvest

Module	Module 1 — Indian Polity, Constitution and Governance
Chapter	Chapters 1.4 to 1.13
Topic	Completion of Module 1
Version	v1.0
Compiled	9 August 2026
Exam stage	Recruitment Test (RT)

NOTE · HOW TO USE THIS DOCUMENT

This single volume completes Module 1. Depth is calibrated to priority, not to page count: the ★★★★★ chapters (1.4, 1.5, 1.7, 1.8, 1.9, 1.10) get full treatment, while 1.12 is deliberately compressed because the evidence says it is low yield. Total study time 20 hours across roughly three weeks of morning hours. The consolidated MCQ bank in Chapter 14 and the Module 1 wall sheet in Chapter 16 are what you revise forever.

Priority ratings and study times are the author's Analytical Estimates, not official UPSC weightage. Items marked VERIFY are current-affairs-sensitive and must be re-checked against a Government source before the RT.

Table of Contents

0. How This Volume Is Weighted	4
1. Chapter 1.4 - Directive Principles and Fundamental Duties ★★★★★	6
1.1 The frame	6
1.2 The socialistic principles - your core ★★★★★	6
1.3 Gandhian and liberal-intellectual principles ★★★★★☆	7
1.4 Amendments that added Directive Principles	8
1.5 Fundamental Rights versus Directive Principles ★★★★★	8
1.6 Fundamental Duties ★★★★★☆	8
2. Chapter 1.5 - Parliament and Financial Procedure ★★★★★	9
2.1 Composition ★★★★★☆	9
2.2 Money Bills and the financial sequence ★★★★★	9
2.3 Charged expenditure - the 2023 question ★★★★★	10
2.4 Committees, devices and defection ★★★★★☆	11
3. Chapter 1.6 - The Union and State Executive ★★★★★☆	12
3.1 The President ★★★★★☆	12
3.2 The Governor, and the 2023 question ★★★★★	12
3.3 Council of Ministers and the law officers ★★★★★☆	12
4. Chapter 1.7 - The Judiciary ★★★★★	14
4.1 The Supreme Court ★★★★★	14
4.2 Jurisdiction, and the remedies ladder ★★★★★	14
4.3 High Courts, subordinate courts and tribunals ★★★★★☆	15
5. Chapter 1.8 - Centre-State Relations and the Seventh Schedule ★★★★★	16
5.1 Legislative relations ★★★★★	16
5.2 Administrative and financial relations ★★★★★☆	16
6. Chapter 1.9 - Local Government ★★★★★	18
6.1 The two amendments ★★★★★	18
6.2 What is compulsory and what is not ★★★★★	18
6.3 The planning committees - asked in 2023 ★★★★★	19
6.4 The committees that led here - Thungon asked in 2023 ★★★★★	19
6.5 Municipalities and PESA ★★★★★☆	20
7. Chapter 1.10 - Finance Commission and State Finance Commission ★★★★★	21
7.1 The Finance Commission ★★★★★	21
7.2 The 15th Finance Commission - asked in 2023 ★★★★★	21
7.3 The State Finance Commission - also asked in 2023 ★★★★★	22
8. Chapter 1.11 - Constitutional Bodies, Statutory Bodies and RTI ★★★★★☆	23
8.1 The three categories ★★★★★	23
8.2 CAG and the Election Commission ★★★★★☆	23
8.3 RTI and the Information Commissions - asked in 2025 ★★★★★☆	24
9. Chapter 1.12 - Amendments, Emergency and the Uniform Civil Code ★★★★★☆	25
9.1 Article 368 - three routes ★★★★★☆	25
9.2 Key amendments to recognise ★★★★★☆	25
9.3 The three Emergencies ★★★★★☆	26
9.4 The Uniform Civil Code - asked in 2025 ★★★★★☆	26
10. Chapter 1.13 - The Governance and Schemes Harvest ★★★★★☆	27
10.1 The technique ★★★★★	27
10.2 The institutions asked in 2023 and 2025 ★★★★★	27
10.3 The bodies most likely to be asked next ★★★★★☆	27
11. Consolidated MCQ Bank - Chapters 1.4 to 1.13	29
Directive Principles and Fundamental Duties	29

Parliament	29
Executive	30
Judiciary	30
Centre-State Relations	31
Local Government	31
Finance Commissions	31
Bodies and Governance	32
12. Answers and Explanations	33
13. Active Recall - Whole of Module 1	35
14. Module 1 One-Minute Revision - All Thirteen Chapters	35
15. Module 1 Five-Minute Wall Sheet	37

0. How This Volume Is Weighted

Ten chapters in one volume, but **not** ten equal chapters. The whole point of this manual is that equal effort across unequal topics loses marks.

Ch	Topic	Priority	Time	Basis for the rating
1.4	DPSP and Fundamental Duties	★★★★★	150 min	Article 43 asked in 2023 ; UCC asked in 2025; the whole social security architecture
1.5	Parliament and financial procedure	★★★★★	150 min	Consolidated Fund asked in 2023 ; PAC and Article 253 asked in 2015; Parliament asked in 2025
1.6	Union and State Executive	★★★★☆	90 min	Governor's ordinance power asked in 2023
1.7	Judiciary	★★★★★	120 min	Curative petition asked in 2023 ; SC, HC and CJI asked in 2025. Rising
1.8	Centre-State relations, Seventh Schedule	★★★★★	120 min	Union and Concurrent Lists asked in 2025 ; Article 253 in 2015; labour sits here
1.9	Local government, 73rd and 74th	★★★★★	120 min	Thungon Committee and DPC/MPC asked in 2023 - the densest single Polity area
1.10	Finance Commission and State FC	★★★★★	90 min	15th FC and State FC both asked in 2023
1.11	Constitutional bodies and RTI	★★★★☆	90 min	CIC and RTI asked in 2025
1.12	Amendments, Emergency, UCC	★★★★☆	60 min	Emergency never observed in 2023 or 2025. Deliberately compressed
1.13	Governance and schemes harvest	★★★★☆	120 min	Five of twelve 2023 Polity questions were institutional or scheme questions

MUST MASTER · THE FINDING THAT SHAPES THIS WHOLE VOLUME

In the 2023 paper, **local government plus the Finance Commissions supplied four Polity questions** while Fundamental Rights supplied two, and **five more** were institution-or-scheme questions of the "which Ministry runs CAMPA" type.

Standard Polity courses invert this - thick on Rights and Emergency, thin on panchayats, Finance Commissions and institutions. Chapters 1.9, 1.10 and 1.13 are therefore the highest-yield chapters in this volume, and Chapter 1.12 is the thinnest.

1. Chapter 1.4 - Directive Principles and Fundamental Duties ★★★★★

Chapter 1.3 gave you the enforceable half of the Constitution. This is the **unenforceable half** - and paradoxically it is where almost every labour and social security promise lives.

Q. If Directive Principles cannot be enforced in court, why do they matter at all?

Ans. Because they are **instructions to the legislature**, and the legislature obeyed them. The EPF Act, the ESI Act, the Minimum Wages Act and the Maternity Benefit Act are all Part IV converted into statute. Article 37 says they are **not enforceable by any court** but are nevertheless **fundamental in the governance of the country**.

1.1 The frame

- 1 **Part IV, Articles 36 to 51.** Borrowed from **Ireland**
- 2 **Article 36** defines "State" the same way as Article 12
- 3 **Article 37** - not enforceable, yet fundamental in governance; the State **shall apply** them in making laws
- 4 There is **no formal classification in the text**. The three-fold grouping below is a study device

1.2 The socialistic principles - your core ★★★★★

Article	Content
38	State to secure a social order promoting welfare; minimise inequalities in income, status, facilities and opportunities - 38(2) inserted by the 44th Amendment, 1978
39(a)	Adequate means of livelihood for all citizens
39(b)	Ownership and control of material resources distributed to serve the common good
39(c)	Prevent concentration of wealth and means of production
39(d)	Equal pay for equal work for men and women
39(e)	Health and strength of workers , men, women and children, not to be abused; citizens not forced by economic necessity into unsuitable work
39(f)	Children given opportunities to develop healthily, with dignity, protected against exploitation
39A	Equal justice and free legal aid - inserted by the 42nd Amendment, 1976
41	Right to work, to education and to public assistance in cases of unemployment, old age, sickness and disablement
42	Just and humane conditions of work and maternity relief
43	Living wage , decent conditions of work, social and cultural opportunities; promotion of cottage industries
43A	Participation of workers in the management of undertakings - 42nd Amendment, 1976
47	Raise nutrition and standard of living , improve public health , prohibit intoxicating drinks and drugs

MUST MASTER · ARTICLE 41 IS THE CONSTITUTIONAL SENTENCE BEHIND YOUR ENTIRE JOB

Read Article 41 again: public assistance in cases of **unemployment, old age, sickness and disablement**.

Now map it to the statutes you will administer:

- 1 **Old age** → Employees' Pension Scheme 1995, Atal Pension Yojana
- 2 **Sickness** → ESI Act 1948 sickness benefit
- 3 **Disablement** → Employees' Compensation Act 1923, ESI disablement benefit
- 4 **Unemployment** → ESI Rajiv Gandhi Shramik Kalyan Yojana, Atmanirbhar Bharat Rozgar Yojana
- 5 **Maternity relief** (Article 42) → Maternity Benefit Act 1961, ESI maternity benefit
- 6 **Living wage** (Article 43) → Minimum Wages Act 1948, Code on Wages 2019
- 7 **Worker participation** (Article 43A) → works committees under the Industrial Disputes Act 1947

Four words in Article 41 generate four benefit heads. If you can recite this mapping you can answer almost any "constitutional basis of social security" question, in the RT or the interview.

PYQ CONNECTION · ACTUALLY ASKED

PYQ-DERIVED. The 2023 APFC paper asked which Article enjoins the State to endeavour, through legislation or economic organisation, to secure payment for work - **Article 43**, the living wage provision. The 2025 paper asked about the **Uniform Civil Code**, which is **Article 44**, also a Directive Principle.

So Part IV has produced a question in **each** of the two most recent papers. It out-performs Fundamental Rights on recent evidence.

1.3 Gandhian and liberal-intellectual principles ★★☆☆☆

Group	Articles
Gandhian	40 village panchayats; 43 cottage industries; 43B promotion of co-operative societies (97th Amendment, 2011); 46 promotion of SCs, STs and weaker sections; 47 prohibition of intoxicants; 48 organisation of agriculture and animal husbandry, prohibition of slaughter of cows and draught cattle
Liberal-intellectual	44 Uniform Civil Code ; 45 early childhood care and education for children below 6 ; 48 modern and scientific agriculture; 48A protection of environment, forests and wildlife (42nd Amendment); 49 protection of monuments; 50 separation of the judiciary from the executive ; 51 promotion of international peace and security

COMMON UPSC TRAP · FOUR RELIABLE TRAPS IN PART IV

- 1 **Article 45 no longer covers 6 to 14.** After the **86th Amendment, 2002**, Article 45 covers **below 6**, while **6 to 14** became the Fundamental Right in **Article 21A**.
- 2 **Article 39A, free legal aid, is a Directive Principle**, not a Fundamental Right - although the courts have read legal aid into Article 21 as well.
- 3 **Article 50, separation of judiciary from executive, is a DPSP** - it is not an enforceable separation-of-powers guarantee.
- 4 **Article 43B, co-operative societies, came in 2011** by the 97th Amendment - the same amendment that added co-operative societies to Article 19(1)(c).

1.4 Amendments that added Directive Principles

Amendment	What it added or changed
42nd, 1976	Added 39A legal aid, 43A worker participation, 48A environment
44th, 1978	Added 38(2) minimising inequalities
86th, 2002	Recast 45 to early childhood care for under-6
97th, 2011	Added 43B co-operative societies

1.5 Fundamental Rights versus Directive Principles ★★★★★

Feature	Fundamental Rights	Directive Principles
Source	USA	Ireland
Nature	Negative - restrain the State	Positive - require State action
Enforceable	Yes , Article 32 or 226	No - Article 37
Aim	Political democracy	Social and economic democracy
Sanction	Legal	Political and moral

The conflict was settled in stages:

- Champakam Dorairajan (1951)** - Fundamental Rights prevail; led to the **1st Amendment, 1951**
- Article 31C** protects laws implementing **Article 39(b) and (c)** from challenge under Articles 14 and 19
- The **42nd Amendment** tried to extend that protection to **all** Directive Principles
- Minerva Mills (1980)** struck that extension down, holding that **harmony and balance between Fundamental Rights and Directive Principles is part of the basic structure**

1.6 Fundamental Duties ★★☆☆☆

- Part IVA, Article 51A**, added by the **42nd Amendment, 1976**, on the recommendation of the **Swaran Singh Committee (1976)**
- The Committee recommended **eight** duties; the amendment incorporated **ten**
- The **11th** was added by the **86th Amendment, 2002** - a duty on a parent or guardian to provide **education opportunities to a child between 6 and 14**
- There are therefore **eleven** Fundamental Duties. They are **non-justiciable**, and apply to **citizens only**
- The **Verma Committee (1999)** examined how to operationalise them

COMMON UPSC TRAP

The commonest error is answering **ten**. Since 2002 the answer is **eleven**. And note the asymmetry: Fundamental Duties bind **citizens**, whereas Directive Principles bind the **State**.

2. Chapter 1.5 - Parliament and Financial Procedure



Q. Why does an APFC candidate need Parliament in detail?

Ans. Because the **financial** half of this chapter is what gets asked. The 2023 paper asked which expenditures are **charged** to the Consolidated Fund of India; the 2015 paper asked who appoints the **Public Accounts Committee** chairman and about **Article 253**. These are procedural facts, not political theory.

2.1 Composition ★★★★★☆

Feature	Lok Sabha	Rajya Sabha
Maximum strength	550 - 530 States + 20 UTs	250 - 238 elected + 12 nominated
Present strength	543	245
Election	Direct, universal adult franchise	Indirect - by elected MLAs, proportional representation with a single transferable vote
Term	5 years , dissolvable	Permanent body , never dissolved; one-third retire every 2 years ; member term 6 years
Presiding officer	Speaker - a member of the House	Chairman = Vice-President , who is not a member
Nomination	None (Anglo-Indian seats ceased in 2020)	12, for literature, science, art and social service

- Article 85** - the gap between two sessions may not exceed **six months**
- Quorum** - **one-tenth** of the total membership
- The **104th Amendment, 2019** (effective January 2020) ended the reserved **Anglo-Indian** seats and extended SC and ST reservation

COMMON UPSC TRAP · RAJYA SABHA IS NOT A 'WEAKER' HOUSE IN EVERY RESPECT

The Rajya Sabha is weaker on **money matters** and on **no-confidence**, but it has **exclusive** powers too: only the Rajya Sabha can pass a resolution under **Article 249** enabling Parliament to legislate on a State List subject, and only it can initiate the removal of the **Vice-President**. On constitutional amendments the two Houses are **equal**, and there is **no joint sitting** for them.

2.2 Money Bills and the financial sequence ★★★★★★

Feature	Money Bill - Article 110
Introduction	Lok Sabha only , on the President's recommendation
Rajya Sabha's power	May only recommend changes; must return within 14 days ; the Lok Sabha may reject the recommendations
Certification	The Speaker certifies a Bill as a Money Bill, and the decision is final
Joint sitting	Never for a Money Bill
President	Cannot return a Money Bill for reconsideration

Article 108 joint sitting is available for **ordinary and financial Bills** - **not** for Money Bills and **not** for Constitutional Amendment Bills. It is presided over by the **Speaker** and has been used **three times**: the Dowry Prohibition Bill, the Banking Service Commission (Repeal) Bill, and the Prevention of Terrorism Bill.

2.3 Charged expenditure - the 2023 question ★★★★★

Article 112(3) lists expenditure **charged** on the Consolidated Fund of India. Charged expenditure is **not submitted to the vote** of Parliament, though it may be discussed.

Charged - NOT votable	Votable
Emoluments and allowances of the President and the expenditure of his office	All other expenditure of the Government
Salaries and allowances of the Chairman and Deputy Chairman of the Rajya Sabha and the Speaker and Deputy Speaker of the Lok Sabha	Ministry-wise demands for grants
Debt charges - interest, sinking fund charges, redemption	-
Salaries, allowances and pensions of Supreme Court judges; pensions of High Court judges	-
Salary, allowances and pension of the CAG	-
Salary, allowances and pension of the Chairman and members of the UPSC	-
Administrative expenses of the Supreme Court, the CAG's office and the UPSC	-
Sums required to satisfy a court decree or award	-

MEMORY TECHNIQUE · WHY THESE ITEMS AND NOT OTHERS

Every charged item protects **independence**. If Parliament could vote annually on a judge's salary or the CAG's budget, it could starve the institution that checks it. So the test is not a list to memorise blindly - ask "would voting on this let the executive or legislature coerce a watchdog?" If yes, it is charged.

One asymmetry worth a mark: for High Court judges only **pensions** are charged on the **Consolidated Fund of India** - their salaries are charged on the **Consolidated Fund of the State**.

The annual sequence: **Article 112** Annual Financial Statement → general discussion → **demands for grants** → **Appropriation Bill** authorising withdrawal from the Consolidated Fund → **Finance Bill** giving effect to tax proposals. Supporting devices: **vote on account** for interim expenditure, and the **guillotine**, by which undiscussed demands are put to vote together.

Article 266 Consolidated Fund of India; **Article 267** Contingency Fund, at the disposal of the President; and the **Public Account** under Article 266(2).

HIGH YIELD · APFC HOOK - WHERE PROVIDENT FUND MONEY SITS

The **Public Account** holds money where the Government acts as a **banker or trustee** rather than owner - and **provident funds** are the textbook example. Withdrawals from the Public Account do **not** need parliamentary appropriation, precisely because the money is not the Government's. That is the constitutional logic of a provident fund: contributions are held in trust for the subscriber. Carry it into Module 3.

2.4 Committees, devices and defection ★★★★★☆

Committee	Members	Key facts
Public Accounts Committee	22	15 Lok Sabha + 7 Rajya Sabha ; chairman appointed by the Speaker ; by convention from the Opposition since 1967 ; a Minister cannot be a member; examines CAG reports
Estimates Committee	30	All from the Lok Sabha ; the largest committee
Committee on Public Undertakings	22	15 Lok Sabha + 7 Rajya Sabha
Departmentally Related Standing Committees	31 each	24 committees ; 21 Lok Sabha + 10 Rajya Sabha

PYQ CONNECTION

PYQ-DERIVED. The 2015 paper tested the statement that the **Speaker of the Lok Sabha appoints the Chairman of the Public Accounts Committee** - which is **correct**. The CAG is often described as the "friend, philosopher and guide" of the PAC.

Parliamentary devices worth recognising: **Question Hour**; **Zero Hour**, an Indian innovation **not mentioned in the Rules of Procedure**; **Adjournment Motion**, which involves an element of censure and needs the support of **50 members**, and is **not available in the Rajya Sabha**; **No-confidence Motion**, Lok Sabha only, **50 members**; and **cut motions** - policy cut reducing a demand to **Re 1**, economy cut, and token cut of **Rs 100**.

Anti-defection sits in the **Tenth Schedule**, added by the **52nd Amendment, 1985**. The presiding officer decides. The **91st Amendment, 2003** deleted the old **one-third "split"** exemption, leaving only **merger with two-thirds** consent.

KNOW · TWO MORE FROM THE 2015 PAPER

Article 253 lets Parliament legislate for the whole or any part of India to implement an **international treaty, agreement or convention** - even on a **State List** subject. This is directly relevant to labour: it is the route by which **ILO conventions** are given domestic effect.

Also asked in 2015: if the **Prime Minister is a member of the Rajya Sabha**, he may **speak and participate** in Lok Sabha proceedings but **cannot vote** there.

3. Chapter 1.6 - The Union and State Executive



3.1 The President ★★★★★

Feature	Detail
Election	Indirect , by an electoral college of the elected members of both Houses plus the elected members of State Legislative Assemblies, including Delhi and Puducherry . Proportional representation, single transferable vote , secret ballot
Nominated members	Do not vote in the presidential election, but do participate in impeachment
Term	5 years; eligible for re-election
Impeachment - Article 61	Only for violation of the Constitution . Charge in either House, signed by one-fourth of total members, 14 days' notice , passed by two-thirds of the total membership , then investigated and similarly passed by the other House

Powers: executive, legislative, financial, **judicial - pardoning power under Article 72**, and emergency. On Bills the President may exercise an **absolute veto**, a **suspensive veto**, or a **pocket veto** - but has **no veto over a Constitutional Amendment Bill**, assent being mandatory since the **24th Amendment, 1971**.

Article 123 - Ordinance. Available only when **Parliament is not in session**. An ordinance must be laid before Parliament and **ceases to operate six weeks after reassembly**. In *D. C. Wadhwa v. State of Bihar* (1987) the Supreme Court held that **repromulgation** of ordinances is a **fraud on the Constitution**.

3.2 The Governor, and the 2023 question ★★★★★

MUST MASTER · THE GOVERNOR'S ORDINANCE POWER IS NOT DISCRETIONARY

PYQ-DERIVED. The 2023 APFC paper asked which statements about the **Governor's ordinance-making power under Article 213** are **not** correct - and the statement that it is a **discretionary power** is precisely the incorrect one.

The correct position: the Governor promulgates an ordinance on the **aid and advice of the State Council of Ministers**, not at personal discretion. Two genuine constraints do exist - the Governor **cannot** issue an ordinance without the **President's instructions** where a corresponding Bill would have required the President's previous sanction, and the ordinance **ceases six weeks** after the State legislature reassembles.

The Governor's **genuine discretionary powers** under **Article 163** are a short, learnable list: reserving a Bill for the **President's consideration**; recommending **President's Rule**; acting as **administrator of an adjoining Union Territory**; determining amounts payable to autonomous tribal districts in Assam; and **seeking information** from the Chief Minister. To these are added **situational** discretion - appointing a Chief Minister when no party has a clear majority, dismissing a ministry that has lost confidence, and dissolving the Assembly.

COMMON UPSC TRAP

The Governor's pardoning power under **Article 161** is **narrower** than the President's: a Governor **cannot pardon a death sentence** and has **no power over court-martial** sentences. Both remain with the President under **Article 72**.

3.3 Council of Ministers and the law officers ★★★★★

- 1 **Article 74** - a Council of Ministers with the Prime Minister at the head to **aid and advise** the President; the advice is **binding** since the 42nd and 44th Amendments, and the President may require reconsideration **once**
- 2 **Article 75** - appointment, and collective responsibility to the **Lok Sabha**. Since the **91st Amendment, 2003**, the Council of Ministers may not exceed **15% of the strength of the Lok Sabha**
- 3 **Article 78** - the Prime Minister's duty to communicate Cabinet decisions to the President
- 4 **Article 76 - Attorney General**, appointed by the President, qualified to be a Supreme Court judge, the **first law officer**, with a right of audience in all courts; **not** a member of the Cabinet. The State counterpart is the **Advocate General** under **Article 165**
- 5 **Vice-President**, Articles 63 to 71 - elected by an electoral college of **both Houses**, including **nominated** members

4. Chapter 1.7 - The Judiciary ★★★★★

Q. What does UPSC actually ask about the judiciary?

Ans. On the recent evidence, **procedural remedies and composition** - the curative petition in 2023, and the Supreme Court, High Courts and the Chief Justice of India in 2025. Not constitutional theory.

4.1 The Supreme Court ★★★★★

Feature	Detail
Strength	34 - the Chief Justice plus 33 judges, under the Supreme Court (Number of Judges) Amendment Act, 2019
Appointment	By the President ; in practice through the collegium - the CJI and the four senior-most judges - established by the Second Judges Case (1993) and the Third Judges Case (1998)
NJAC	The 99th Amendment creating the National Judicial Appointments Commission was struck down in 2015 in the Fourth Judges Case
Qualification	Citizen, and either 5 years as a High Court judge, or 10 years an advocate of a High Court, or a distinguished jurist
Retirement	65 for the Supreme Court, 62 for a High Court
Removal - Article 124(4)	Proved misbehaviour or incapacity ; address by both Houses by special majority in the same session; procedure in the Judges (Inquiry) Act, 1968 . No judge has ever been removed

4.2 Jurisdiction, and the remedies ladder ★★★★★

Head	Content
Original - Article 131	Exclusive jurisdiction over federal disputes: Centre versus State, or State versus State
Writ - Article 32	Enforcement of Fundamental Rights only. See Chapter 1.3
Appellate	132 constitutional, 133 civil, 134 criminal, 136 Special Leave Petition - discretionary and very wide
Advisory - Article 143	The President may refer a question of law or fact of public importance . Borrowed from Canada . The opinion is not binding , and under 143(1) the Court may decline to answer
Court of record - Article 129	Records are evidentiary; power to punish for contempt . High Courts have the same under Article 215
Review - Article 137	The Court may review its own judgment

MUST MASTER · THE CURATIVE PETITION - ASKED IN 2023

A **curative petition** is the **last** remedy in Indian law, devised in *Rupa Ashok Hurra v. Ashok Hurra* (2002). It is entertained **after a review petition under Article 137 has already been dismissed**.

Its features, which is what the 2023 question tested:

- 1 Grounds are narrow - essentially a **violation of natural justice**, such as the petitioner not being heard, or **bias** in the judge
- 2 It must be **certified by a senior advocate**
- 3 It is circulated to the **three senior-most judges** and the judges who passed the impugned judgment
- 4 It is normally decided **without oral hearing**, in chambers

Order of remedies to memorise: judgment → **review (Article 137)** → **curative petition**.

Anything claiming the curative petition comes before review is wrong.

4.3 High Courts, subordinate courts and tribunals ★★★★★

- 1 **Articles 214 to 231.** A High Court may be **common to two or more States** and a Union Territory
- 2 **Article 226** writ jurisdiction is **wider** than Article 32 - Fundamental Rights **and** other legal rights. This is the practical route for challenging statutory authorities
- 3 **Article 227** - power of superintendence over all subordinate courts
- 4 Subordinate courts, **Articles 233 to 237**; district judges appointed by the **Governor** in consultation with the High Court
- 5 **Article 50**, a Directive Principle, calls for **separation of the judiciary from the executive**
- 6 **Tribunals - Articles 323A and 323B**, inserted by the **42nd Amendment, 1976**. 323A covers **administrative** tribunals and may be used by **Parliament only**; 323B covers other specified matters and may be used by **Parliament or a State legislature**
- 7 In **L. Chandra Kumar (1997)** the Supreme Court held that the writ jurisdiction of the High Courts under **Articles 226 and 227 cannot be excluded**, so tribunal decisions remain subject to judicial review

HIGH YIELD · APFC HOOK - THE APPEAL PATH FROM A SECTION 7A ORDER

An assessment of dues under **Section 7A** of the EPF & MP Act, 1952 is a **quasi-judicial** determination. The statutory appeal under **Section 7-I** lies to the Tribunal designated under **Section 7D**; following the tribunal rationalisation carried out by the **Finance Act, 2017**, those appellate functions were transferred to the **Central Government Industrial Tribunal**. Beyond that, the remedy is a **writ petition to the High Court under Article 226**, and *L. Chandra Kumar* guarantees that this route cannot be closed off.

VERIFY in Module 3. The exact designation of the appellate forum has changed with tribunal reform, so we will confirm the current position against the bare Act and an EPFO circular when we reach Chapter 3.2. The **constitutional** point - Article 226 survives - is settled.

5. Chapter 1.8 - Centre-State Relations and the Seventh Schedule ★★★★★

This is the chapter where labour law acquires its legal address. Everything in Module 2 is legislated under entries you will learn here.

5.1 Legislative relations ★★★★★

Provision	Content
Article 245	Territorial extent of Union and State laws
Article 246	Three-fold distribution. Union List - 100 entries at present, originally 97. State List - 61 at present, originally 66. Concurrent List - 52 at present, originally 47
Article 248	Residuary powers with Parliament - the Canadian model, unlike the USA
Article 254	Repugnancy - Central law prevails on the Concurrent List; exception in 254(2) , where a State law reserved for and receiving the President's assent prevails in that State

MUST MASTER · THE LABOUR ENTRIES - COMMIT THESE TO MEMORY

Entry	Concurrent List, List III
22	Trade unions; industrial and labour disputes
23	Social security and social insurance; employment and unemployment
24	Welfare of labour , including conditions of work, provident funds , employers' liability, workmen's compensation, invalidity and old age pensions, and maternity benefits

Three consequences:

- 1 Both Parliament and State legislatures may legislate on labour, which is why you will meet both central Acts and State rules and amendments
- 2 Under **Article 254**, where they conflict, **the central Act prevails**
- 3 It also explains a practical feature of your job: **State-level variation** in minimum wages and in factory rules, sitting under a **uniform** central provident fund regime

Parliament may legislate on a **State List** subject in five situations:

Article	Situation
249	In the national interest , on a Rajya Sabha resolution passed by two-thirds of members present and voting
250	During a National Emergency
252	On the request of two or more States - the resulting law applies to those States, and others may adopt it
253	To implement an international treaty, agreement or convention - the ILO route , asked in 2015
356	When President's Rule is in force in a State

5.2 Administrative and financial relations ★★★★★☆

- 1 **Articles 256 to 263** - administrative relations. **Article 262** water disputes; **Article 263** the **Inter-State Council**, a constitutional body set up by presidential order in 1990
- 2 **Articles 268 to 293** - financial relations. **Article 275** statutory grants-in-aid; **Article 282** discretionary grants, the basis of most centrally sponsored schemes
- 3 **Article 280** - the **Finance Commission**, treated fully in Chapter 1.10
- 4 **Article 279A** - the **GST Council**, inserted by the **101st Amendment, 2016**. Chaired by the Union Finance Minister; decisions need a **three-fourths** majority of weighted votes, the Centre holding **one-third** and the States together **two-thirds**
- 5 **Articles 301 to 307** - freedom of **trade, commerce and intercourse**

Commissions on Centre-State relations worth naming: the **Rajamannar Committee (1969)**, the **Sarkaria Commission (1983-88)** and the **Punchhi Commission (2007-10)**.

COMMON UPSC TRAP · TWO COUNCILS, TWO VERY DIFFERENT POWERS

Do not confuse them:

- 1 The **Inter-State Council** rests on **Article 263**, was set up by a **presidential order in 1990**, and is purely **advisory** - it recommends, it cannot decide.
- 2 The **GST Council** rests on **Article 279A**, was created by the **101st Amendment, 2016**, and takes **binding decisions** by a **three-fourths weighted majority**.

So one is constitutional-but-advisory and the other constitutional-and-binding. This is the *advisory versus binding* trap applied to two bodies with near-identical names.

6. Chapter 1.9 - Local Government ★★★★★

On the 2023 evidence this is the **densest** Polity area in the paper - the Thungon Committee and the District and Metropolitan Planning Committees were both asked. Give it full attention.

6.1 The two amendments ★★★★★

Feature	73rd Amendment, 1992	74th Amendment, 1992
Subject	Panchayats - rural	Municipalities - urban
Part inserted	Part IX	Part IXA
Articles	243 to 243-O	243-P to 243-ZG
Schedule added	Eleventh - 29 subjects	Twelfth - 18 subjects
In force from	24 April 1993	1 June 1993

6.2 What is compulsory and what is not ★★★★★

Compulsory	Voluntary
Gram Sabha in a village	Giving representation to MPs and MLAs
Three-tier structure - village, intermediate and district. A State with a population not exceeding 20 lakh need not have the intermediate tier	Granting reservation to backward classes
Direct elections to all seats at all levels	Devolving finances and functions beyond the minimum
Reservation of seats for SCs and STs in proportion to population , and not less than one-third for women	Giving financial powers to panchayats
Five-year term ; fresh elections before expiry , or within six months of dissolution	-
State Election Commission to conduct elections	-
State Finance Commission every five years	-

MUST MASTER · THE 20 LAKH RULE AND THE ONE-THIRD RULE

Two numbers do most of the work here. A State whose population **does not exceed 20 lakh** may omit the **intermediate** tier - so a three-tier structure is not universal. And reservation for **women is not less than one-third** of total seats, while reservation for **SCs and STs is proportional to their population** - not one-third. Options that make the SC and ST reservation one-third, or the women's reservation proportional, invert this.

6.3 The planning committees - asked in 2023 ★★★★★

Feature	District Planning Committee	Metropolitan Planning Committee
Article	243-ZD	243-ZE
Purpose	Consolidate the plans of panchayats and municipalities in the district into a draft district development plan	Prepare a draft development plan for a metropolitan area
Threshold	Every district	Metropolitan area with a population of 10 lakh or more
Elected share	Not less than four-fifths of members elected by the elected members of the district panchayat and municipalities, in proportion to rural and urban population	Not less than two-thirds elected by the elected members of municipalities and panchayat chairpersons in the area

MEMORY TECHNIQUE · FOUR-FIFTHS AND TWO-THIRDS

District = four-fifths. Metropolitan = two-thirds. The larger, more rural unit has the larger elected proportion. Remember it as "**District has more democracy**" - and remember the metropolitan threshold is **10 lakh**, whereas the intermediate-tier threshold in Section 6.2 is **20 lakh**. Two different numbers, easily swapped.

6.4 The committees that led here - Thungon asked in 2023 ★★★★★

Committee	Year	Core recommendation
Balwant Rai Mehta	1957	Three-tier panchayati raj: village, block and district. Democratic decentralisation
Ashok Mehta	1977	Two-tier - Zila Parishad and Mandal Panchayat; district as the first point of decentralisation
G. V. K. Rao	1985	District development officer; panchayati raj had been weakened by bureaucratisation
L. M. Singhvi	1986	Constitutional status for panchayati raj; Gram Sabha as the base of decentralisation
Thungon Committee	1988	Constitutional recognition ; a three-tier system; a five-year term ; and a District Planning Committee with the Zila Parishad chairman as its head
Gadgil Committee	1988	Constitutional status and a five-year term, with detailed powers

THINK LIKE UPSC

These committees are almost interchangeable in a hurried reading, so the examiner separates them by **one distinctive feature each**:

- 1 **Balwant Rai Mehta = three-tier** (the original)
- 2 **Ashok Mehta = two-tier** (the outlier)
- 3 **L. M. Singhvi = constitutional status** first proposed
- 4 **Thungon = District Planning Committee** and constitutional recognition

Learn the one-word signature, not the full report. The 2023 question asked what **Thungon** recommended in respect of local governments - answerable purely from the signature.

6.5 Municipalities and PESA ★★☆☆☆

Three kinds of urban body under **Article 243-Q**: a **Nagar Panchayat** for a transitional area, a **Municipal Council** for a smaller urban area, and a **Municipal Corporation** for a larger urban area. **Article 243-S** provides for **Ward Committees** in municipalities with a population of **three lakh or more**.

Articles 243-G and 243-W are the **devolution** provisions - the State legislature **may** endow panchayats and municipalities with such powers as are necessary, which is why devolution varies so much across States.

The **Panchayats (Extension to Scheduled Areas) Act, 1996 - PESA** extends Part IX to **Fifth Schedule** areas with modifications, giving the Gram Sabha wide powers over minor minerals, minor forest produce and land acquisition consultation.

7. Chapter 1.10 - Finance Commission and State Finance Commission ★★★★★

Q. Why did the 2023 paper ask two questions from this small topic?

Ans. Because it is where **constitutional structure meets current fiscal fact** - a single topic that lets the examiner test an Article, an institution and a number at once.

7.1 The Finance Commission ★★★★★

Feature	Detail
Article	280
Constituted by	The President , every five years or earlier
Composition	A Chairman and four other members
Nature	A constitutional body, and quasi-judicial
Recommendations	Advisory only - NOT binding on the Government

Its functions are to recommend:

- 1 The **distribution of the net proceeds of taxes** between the Union and the States, and the **inter se allocation** among States
- 2 The **principles governing grants-in-aid** to States out of the **Consolidated Fund of India**
- 3 Measures to **augment the Consolidated Fund of a State** to supplement the resources of **panchayats and municipalities** - added by the **73rd and 74th Amendments**
- 4 Any other matter **referred by the President**

COMMON UPSC TRAP · THE SINGLE MOST TESTED FACT ABOUT THE FINANCE COMMISSION

Its recommendations are **advisory and not binding**. The Government lays them before Parliament with an explanatory memorandum of action taken. Any option calling them **binding** is wrong - and this is a textbook instance of the **advisory versus binding** trap listed in the Blueprint. Second trap: the Finance Commission is **constitutional** (Article 280) while **NITI Aayog** is a purely **executive** body created by a Cabinet resolution, with no constitutional or statutory basis.

7.2 The 15th Finance Commission - asked in 2023 ★★★★★

Feature	Detail
Chairman	N. K. Singh
Award period	2021-22 to 2025-26
Vertical devolution	41% of the divisible pool to States - reduced from the 14th Commission's 42% to account for the reorganisation of Jammu and Kashmir into Union Territories
Horizontal criteria	Income distance 45%, Area 15%, Population (2011) 15%, Demographic performance 12.5%, Forest and ecology 10%, Tax and fiscal effort 2.5%
Local body grants	Split into basic (untied) grants and tied grants. For rural local bodies the split is 40% untied and 60% tied , the tied portion earmarked for sanitation and open-defecation-free status and for drinking water, rainwater harvesting and water recycling

MEMORY TECHNIQUE · INCOME DISTANCE IS THE BIGGEST WEIGHT

Income distance 45% dominates, and its logic is equalising: the further a State's per capita income is below the richest, the larger its share. **Demographic performance at 12.5%** was the 15th Commission's device for not penalising States that controlled population growth, given the shift to the **2011** census.

If you remember only two numbers, remember **41% vertical** and **45% income distance**.

IMPORTANT · VERIFY BEFORE THE RT - THE 16TH FINANCE COMMISSION

The **16th Finance Commission** was constituted with **Arvind Panagariya** as Chairman, to make recommendations for the five years beginning **1 April 2026**. Since that award period has now commenced, the operative devolution figures may have changed from the 15th Commission's.

Action: confirm the 16th Commission's recommended **vertical devolution percentage** and **horizontal criteria** from the Ministry of Finance or PIB before the exam, and treat any question about "the current" devolution share accordingly. This is exactly the sort of item Module 10 will track.

7.3 The State Finance Commission - also asked in 2023 ★★★★★

Feature	Finance Commission	State Finance Commission
Article	280	243-I for panchayats; 243-Y for municipalities
Constituted by	The President	The Governor
Periodicity	Every five years	Every five years
Divides revenue between	Union and States	State and its local bodies
Recommendations	Advisory	Advisory; laid before the State legislature

The State Finance Commission recommends the **distribution between the State and its panchayats and municipalities** of the net proceeds of State taxes, duties, tolls and fees; the **allocation among local bodies**; the taxes that may be **assigned to** local bodies; **grants-in-aid** from the State's Consolidated Fund; and **measures to improve the financial position** of local bodies.

MUST MASTER · PRESIDENT VERSUS GOVERNOR

Finance Commission → President → Article 280 → Union and States. State Finance Commission → Governor → Articles 243-I and 243-Y → State and local bodies.

Swapping the appointing authority is the most likely single-word alteration in this topic, and it was tested in 2023.

8. Chapter 1.11 - Constitutional Bodies, Statutory Bodies and RTI ★★★★★☆

Q. What is the examinable distinction here?

Ans. Constitutional versus statutory versus executive. The Blueprint lists this as a standard UPSC trap, and it is tested by pairing a body with the wrong category.

8.1 The three categories ★★★★★

Category	Bodies
Constitutional - named in the Constitution	Election Commission (324), UPSC and State PSCs (315-323), Finance Commission (280), CAG (148-151), Attorney General (76), Advocate General (165), National Commission for SCs (338), for STs (338A), for Backward Classes (338B, inserted by the 102nd Amendment, 2018), Special Officer for Linguistic Minorities (350B), Inter-State Council (263), GST Council (279A)
Statutory - created by an Act	NHRC (Protection of Human Rights Act, 1993), Central and State Information Commissions (RTI Act, 2005), CVC (CVC Act, 2003), Lokpal (Lokpal and Lokayuktas Act, 2013), NCW , NCPCR , Competition Commission , SEBI , TRAI , IRDAI , PFRDA , UIDAI , and - directly relevant to you - EPFO under the EPF & MP Act, 1952 and ESIC under the ESI Act, 1948
Executive or non-statutory - by resolution or order	NITI Aayog , created by a Cabinet resolution in 2015 ; the Central Vigilance Commission was executive until 2003; the CBI functions under the Delhi Special Police Establishment Act, 1946

MUST MASTER · EPFO'S OWN CATEGORY - EXPECT THIS IN THE INTERVIEW

EPFO is a statutory body, not a constitutional one - created by the **EPF & MP Act, 1952**, under the **Ministry of Labour and Employment**, governed by a tripartite **Central Board of Trustees** chaired by the Union Labour Minister. It is simultaneously:

- 1 **"State"** under **Article 12**, so bound by Fundamental Rights - Chapter 1.3
- 2 A **public authority** under the **RTI Act, 2005**, so subject to information requests
- 3 Amenable to **Article 226** writ jurisdiction

Detail comes in Chapter 3.4. Learn the category now so you never mis-classify it.

8.2 CAG and the Election Commission ★★★★★☆

Feature	CAG - Articles 148-151	Election Commission - Article 324
Appointment	By the President	CEC and Election Commissioners by the President
Tenure	6 years or 65 , whichever is earlier	6 years or 65 , whichever is earlier
Removal	Same manner as a Supreme Court judge	The CEC only in the same manner as a Supreme Court judge; other Commissioners on the CEC's recommendation
Role	Audits the Consolidated Fund of the Union, States and UTs with a legislature, the Contingency Fund and the Public Account ; reports to the President , who lays them before Parliament, where the PAC examines them	Superintendence, direction and control of elections to Parliament, State legislatures, the office of President and Vice-President

Ambedkar described the CAG as the **most important officer** under the Constitution. Note the limit that UPSC likes: the CAG audits **after** expenditure, and is often contrasted with the pre-audit role the office does **not** have. Also note the Election Commission does **not** conduct **local body** elections - those belong to the **State Election Commission** under Articles 243-K and 243-ZA.

8.3 RTI and the Information Commissions - asked in 2025 ★★★★★☆

Feature	Detail
Statute	Right to Information Act, 2005 - a statutory , not constitutional, right, though flowing from Article 19(1)(a)
Central Information Commission	The Chief Information Commissioner and up to 10 Information Commissioners
Appointment	By the President on the recommendation of a committee of the Prime Minister , the Leader of the Opposition in the Lok Sabha , and a Union Cabinet Minister nominated by the Prime Minister
Time limits	30 days ordinarily; 48 hours where life or liberty is concerned; 35 days where the application is routed through an Assistant PIO
Exemptions	Section 8 exemptions; Section 24 excludes specified intelligence and security organisations, save for allegations of corruption and human rights violations
2019 amendment	The RTI (Amendment) Act, 2019 empowered the Central Government to prescribe the term and salaries of Information Commissioners, previously fixed at five years in the Act

COMMON UPSC TRAP

The **Chief Information Commissioner is statutory**, appointed under the RTI Act - **not** a constitutional authority, and **not** appointed on the advice of the Chief Justice. And the right to information is a **statutory** right traced to Article 19(1)(a); it is not itself a separate Fundamental Right.

9. Chapter 1.12 - Amendments, Emergency and the Uniform Civil Code ★★★★★

Deliberately the shortest chapter in this volume. **PYQ-DERIVED:** no question on **Emergency provisions** appeared in the 2023 paper or in the reported 2025 topics. Read once; do not revise twice.

9.1 Article 368 - three routes ★★★★★

Route	Majority	Examples
Simple majority - outside Article 368	Ordinary majority of each House	Admission or formation of new States, creation or abolition of a Legislative Council , citizenship, salaries of MPs, quorum
Special majority	Two-thirds of members present and voting and a majority of the total membership of each House	Fundamental Rights, Directive Principles, and most of the Constitution
Special majority plus State ratification	As above, plus ratification by the legislatures of half the States by simple majority	Election of the President, extent of Union and State executive power, the Supreme Court and High Courts, distribution of legislative powers , any of the Lists in the Seventh Schedule , representation of States in Parliament, and Article 368 itself

MEMORY TECHNIQUE · WHAT NEEDS THE STATES' CONSENT

Only matters that touch the **federal bargain** need State ratification - who elects the President, the courts, and above all the **division of powers and the Seventh Schedule**. Since **labour sits in the Concurrent List**, moving labour out of that List would require ratification by half the States.

9.2 Key amendments to recognise ★★★★★

Amendment	Contribution
1st, 1951	Ninth Schedule; Article 15(4); reasonable restrictions on Article 19
7th, 1956	Reorganisation of States - 14 States and 6 UTs
24th, 1971	Assent to amendment Bills made mandatory; Article 13(4)
42nd, 1976	The " Mini-Constitution " - Socialist, Secular, Integrity; Fundamental Duties; Articles 39A, 43A, 48A; tribunals
44th, 1978	Right to property removed; Articles 20 and 21 protected in emergency; "armed rebellion" replaces "internal disturbance"
52nd, 1985	Anti-defection , Tenth Schedule
61st, 1989	Voting age reduced to 18
73rd and 74th, 1992	Panchayats and municipalities
86th, 2002	Article 21A ; recast Article 45; 11th Fundamental Duty
91st, 2003	Council of Ministers capped at 15% ; defection "split" exemption deleted
97th, 2011	Co-operative societies - Article 19(1)(c), Article 43B, Part IXB
101st, 2016	GST and the GST Council, Article 279A

Amendment	Contribution
102nd, 2018	Constitutional status to the NCBC , Article 338B
103rd, 2019	EWS reservation, Articles 15(6) and 16(6)
104th, 2019	Anglo-Indian reserved seats ceased; SC and ST reservation extended
105th, 2021	Restored States' power to identify socially and educationally backward classes
106th, 2023	Women's reservation - one-third of seats in the Lok Sabha and State Assemblies, to take effect after the next census and delimitation

9.3 The three Emergencies ★★☆☆☆

Feature	National - 352	President's Rule - 356	Financial - 360
Ground	War, external aggression or armed rebellion	Failure of constitutional machinery in a State	Threat to the financial stability or credit of India
Proclaimed on	Written recommendation of the Cabinet	Governor's report or otherwise	-
Approval	Within one month , by special majority of both Houses	Within two months , by simple majority	Within two months , by simple majority
Duration	Six months at a time, indefinitely	Six months at a time, maximum three years subject to conditions	Until revoked
Times used	Three - 1962, 1971, 1975	Very frequently	Never

Effects to recognise: **Article 250** Parliament may legislate on State subjects; **Article 83** the Lok Sabha term may be extended by one year at a time; **Article 358** suspends Article 19; **Article 359** suspends enforcement of Fundamental Rights **except Articles 20 and 21**. On President's Rule, **S. R. Bommai (1994)** made the proclamation **justiciable** and required a floor test.

9.4 The Uniform Civil Code - asked in 2025 ★★☆☆☆

Article 44, a **Directive Principle**, directs the State to endeavour to secure a **Uniform Civil Code** throughout India. It is therefore **not enforceable**. **Goa** has long had a common civil code inherited from Portuguese law, and **Uttarakhand** enacted a Uniform Civil Code in **2024**.

COMMON UPSC TRAP

Article 44 is a **Directive Principle**, not a Fundamental Right, and it says "**shall endeavour to secure**" - not "shall enact". Any option treating the UCC as a constitutional obligation enforceable in court is wrong.

10. Chapter 1.13 - The Governance and Schemes Harvest ★★★★★☆

This chapter exists because of a number. **Five of the twelve** Polity and Governance questions in the 2023 paper were not textbook Polity at all - they were "which Ministry, which nature, which number" questions about institutions and schemes.

10.1 The technique ★★★★★

Q. How do you study an unbounded field like "government institutions"?

Ans. You do not read about them. You **reduce each one to three facts** and store it in a table.

MUST MASTER · THE THREE-FACT RULE

For every institution or scheme, record exactly:

- 1 **Nature** - constitutional, statutory, executive body, fund, or scheme
- 2 **Parent Ministry or Department**
- 3 **One number or one distinctive function**

That is all UPSC has ever asked. It asked which **Ministry** regulates CAMPA, what **objective** eSanjeevani serves, what **BIRAC** was set up to do, which body is the **nodal agency** for a function, and what **percentage of GDP** the health policy targets. None required background reading.

10.2 The institutions asked in 2023 and 2025 ★★★★★

Body or scheme	Nature	Ministry	The one fact
CAMPA	Fund - statutory, under the Compensatory Afforestation Fund Act, 2016	Environment, Forest and Climate Change	Holds money paid in lieu of forest land diverted for non-forest use. Asked 2023
BIRAC	Section 8 not-for-profit public sector enterprise	Department of Biotechnology , Ministry of Science and Technology	Supports biotech innovation in small and medium enterprises. Asked 2023
eSanjeevani	Scheme - a platform	Health and Family Welfare	National telemedicine service. Asked 2023
Department of Economic Affairs	Department	Finance	Nodal for external assistance, bilateral and multilateral economic relations. Asked 2023
National Health Policy 2017	Policy	Health and Family Welfare	Targets public health expenditure of 2.5% of GDP . Asked 2023
NeVA	Scheme - National e-Vidhaan Application	Parliamentary Affairs	Digitises legislature proceedings; a One Nation One Application initiative. Asked 2025
Central Information Commission	Statutory - RTI Act 2005	Personnel, Public Grievances and Pensions	Chief Information Commissioner plus up to 10 Commissioners. Asked 2025

10.3 The bodies most likely to be asked next ★★★★★☆

Body	Nature	Ministry	The one fact
NITI Aayog	Executive - Cabinet resolution, 2015	Independent, PM is Chairperson	Replaced the Planning Commission; no constitutional or statutory basis
EPFO	Statutory - EPF & MP Act 1952	Labour and Employment	Tripartite Central Board of Trustees , chaired by the Union Labour Minister
ESIC	Statutory - ESI Act 1948	Labour and Employment	Administers ESI; coverage threshold 10 or more employees
PFRDA	Statutory - PFRDA Act 2013	Finance	Regulates the National Pension System and Atal Pension Yojana
IRDAI	Statutory - IRDA Act 1999	Finance	Insurance regulator - link to Module 7
Lokpal	Statutory - Lokpal and Lokayuktas Act 2013	Personnel and Public Grievances	Chairperson plus up to 8 members, half judicial
CVC	Statutory since 2003	Personnel and Public Grievances	Central Vigilance Commissioner plus 2 Vigilance Commissioners
NHRC	Statutory - 1993	Home Affairs	Chairperson plus members; recommendatory powers only
Competition Commission	Statutory - 2002	Corporate Affairs	-
MoSPI / NSO	Ministry	Statistics and Programme Implementation	Conducts the Periodic Labour Force Survey - the source of unemployment data
DGLB / Labour Bureau	Attached office	Labour and Employment	Compiles the Consumer Price Index for Industrial Workers , used to fix dearness allowance and minimum wages

HIGH YIELD · TWO OF THESE ARE PURE APFC TERRITORY

MoSPI's Periodic Labour Force Survey and the **Labour Bureau's CPI-IW** are the statistical spine of labour administration. CPI-IW in particular is the index used to revise **variable dearness allowance** under the Minimum Wages Act - which links this governance chapter directly to Chapter 2.5. Expect one of these two in any paper that asks a labour-statistics question.

THINK LIKE UPSC

The recurring construction is a **category swap**: calling NITI Aayog statutory, the NHRC constitutional, or the CIC constitutional. Build your table with the **Nature** column first and read it aloud during revision - "NITI Aayog, **executive**; NHRC, **statutory**; Finance Commission, **constitutional**." Three words each is enough to defeat the whole question type.

11. Consolidated MCQ Bank - Chapters 1.4 to 1.13

Thirty questions. Attempt all before Chapter 12. Apply the Blueprint attempt rule: if you can eliminate even one option, commit.

Directive Principles and Fundamental Duties

Q. 1. Which Article directs the State to secure a living wage and decent conditions of work?

(a) Article 41 (b) Article 42 (c) Article 43 (d) Article 43A

Q. 2. Public assistance in cases of unemployment, old age, sickness and disablement is directed by

(a) Article 39 (b) Article 41 (c) Article 42 (d) Article 47

Q. 3. Participation of workers in the management of undertakings was inserted as Article 43A by

(a) the 42nd Amendment, 1976 (b) the 44th Amendment, 1978 (c) the 86th Amendment, 2002 (d) the 97th Amendment, 2011

Q. 4. Consider the following statements:

- Directive Principles are enforceable by courts under Article 37.
- Article 39A, providing for free legal aid, is a Directive Principle.
- Article 45 now relates to children below six years of age.

Which of the above are correct? (a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 5. How many Fundamental Duties are there at present, and which committee recommended their inclusion?

(a) 10, Verma Committee (b) 10, Swaran Singh Committee (c) 11, Swaran Singh Committee (d) 11, Sarkaria Commission

Q. 6. In *Minerva Mills* (1980) the Supreme Court held that

(a) all Directive Principles prevail over Fundamental Rights (b) harmony between Fundamental Rights and Directive Principles is part of the basic structure (c) Article 31C protects all Directive Principles (d) Directive Principles are enforceable if enacted into law

Parliament

Q. 7. Which of the following is not charged on the Consolidated Fund of India?

(a) Salary of the Comptroller and Auditor General (b) Pension of a High Court judge (c) Salary of the Speaker of the Lok Sabha (d) Salary of a Union Cabinet Minister

Q. 8. In respect of a Money Bill, the Rajya Sabha

(a) may reject it outright (b) may amend it and return it within 14 days (c) may only recommend changes and must return it within 14 days (d) has powers equal to the Lok Sabha

Q. 9. A joint sitting under Article 108 may be convened for

(a) a Money Bill (b) a Constitutional Amendment Bill (c) an ordinary Bill (d) all of the above

Q. 10. The Chairman of the Public Accounts Committee is appointed by

(a) the President (b) the Speaker of the Lok Sabha (c) the Prime Minister (d) election by the Committee

Q. 11. Parliament may legislate on a State List subject in order to implement an international treaty under

(a) Article 249 (b) Article 250 (c) Article 252 (d) Article 253

Q. 12. Consider the following statements about the Rajya Sabha:

- It is a permanent body not subject to dissolution.
- Its Chairman is a member of the House.
- One-third of its members retire every two years.

Which of the above are correct? (a) 1 and 2 only (b) 1 and 3 only (c) 2 and 3 only (d) 1, 2 and 3

Executive

Q. 13. Which of the following statements about the Governor's ordinance-making power under Article 213 is not correct?

(a) It is a discretionary power exercised independently of the Council of Ministers (b) It can be exercised only when the State legislature is not in session (c) In certain cases the Governor must obtain the President's instructions (d) The ordinance ceases to operate six weeks after the legislature reassembles

Q. 14. Nominated members of Parliament

(a) vote in the presidential election but not in impeachment (b) participate in impeachment but not in the presidential election (c) participate in both (d) participate in neither

Q. 15. Which one of the following powers does the Governor not have?

(a) Reserving a Bill for the President's consideration (b) Pardoning a death sentence (c) Recommending President's Rule (d) Promulgating an ordinance

Judiciary

Q. 16. A curative petition

(a) is filed before a review petition (b) is entertained only after a review petition has been dismissed (c) replaces the appellate remedy (d) lies to a High Court

Q. 17. The advisory jurisdiction of the Supreme Court under Article 143

(a) is borrowed from the United States (b) produces an opinion binding on the President (c) is borrowed from Canada and produces a non-binding opinion (d) can be invoked by any citizen

Q. 18. In *L. Chandra Kumar (1997)* the Supreme Court held that

(a) tribunals may wholly replace High Courts (b) the writ jurisdiction of High Courts under Articles 226 and 227 cannot be excluded (c) Articles 323A and 323B are unconstitutional (d) tribunal decisions are final

Centre-State Relations

Q. 19. "Welfare of labour, including conditions of work, provident funds, employers' liability and workmen's compensation" is

(a) Entry 22 of the Concurrent List (b) Entry 23 of the Concurrent List (c) Entry 24 of the Concurrent List (d) an entry in the Union List

Q. 20. Residuary powers of legislation are vested in

(a) the States, following the American model (b) Parliament, following the Canadian model (c) Parliament, following the Australian model (d) the Concurrent List

Q. 21. Which one of the following correctly describes the GST Council?

(a) A statutory body under the GST Act (b) A constitutional body under Article 279A whose decisions are taken by a three-fourths weighted majority (c) An advisory body under Article 263 (d) An executive body created by Cabinet resolution

Local Government

Q. 22. A State need not constitute panchayats at the intermediate level if its population does not exceed

(a) 10 lakh (b) 20 lakh (c) 25 lakh (d) 50 lakh

Q. 23. Under the 73rd Amendment, reservation for Scheduled Castes and Scheduled Tribes in panchayats is

(a) one-third of total seats (b) in proportion to their population (c) fixed by the State Election Commission (d) optional for the State

Q. 24. The Thungon Committee (1988) recommended

(a) a two-tier panchayati raj system (b) abolition of the district tier (c) constitutional recognition, a five-year term and a District Planning Committee (d) that panchayats be financed entirely by the Centre

Q. 25. A Metropolitan Planning Committee is constituted under Article 243-ZE for a metropolitan area with a population of

(a) 3 lakh or more (b) 5 lakh or more (c) 10 lakh or more (d) 20 lakh or more

Finance Commissions

Q. 26. The recommendations of the Finance Commission are

(a) binding on the Union Government (b) binding only on the States (c) advisory in nature (d) binding once laid before Parliament

Q. 27. The 15th Finance Commission recommended vertical devolution to the States of

(a) 32% (b) 41% (c) 42% (d) 45%

Q. 28. The State Finance Commission is constituted by

(a) the President under Article 280 (b) the Governor under Articles 243-I and 243-Y (c) the State legislature by resolution (d) the Union Finance Ministry

Bodies and Governance

Q. 29. Which one of the following is correctly matched?

(a) NITI Aayog - constitutional body (b) National Human Rights Commission - constitutional body (c) National Commission for Backward Classes - constitutional body under Article 338B (d) Central Information Commission - constitutional body

Q. 30. CAMPA, which was the subject of a 2023 question, is regulated by the Ministry of

(a) Finance (b) Environment, Forest and Climate Change (c) Agriculture and Farmers' Welfare (d) Tribal Affairs

12. Answers and Explanations

Q	Ans	Explanation
1	c	Article 43 - living wage and decent conditions. Article 41 is public assistance, 42 humane conditions and maternity relief, 43A worker participation. Asked in 2023
2	b	Article 41 - the four heads are unemployment, old age, sickness and disablement
3	a	42nd Amendment, 1976 , which also added Articles 39A and 48A
4	b	Statement 1 is wrong - Article 37 makes them expressly not enforceable. Statements 2 and 3 are correct
5	c	Eleven duties. The Swaran Singh Committee (1976) recommended eight; the 42nd Amendment included ten; the 86th Amendment, 2002 added the eleventh
6	b	<i>Minerva Mills</i> struck down the 42nd Amendment's attempt to extend Article 31C to all Directive Principles, holding that harmony and balance is part of the basic structure
7	d	A Minister's salary is votable . The CAG's salary, a High Court judge's pension and the Speaker's salary are all charged
8	c	The Rajya Sabha may only recommend , and must return the Bill within 14 days ; the Lok Sabha may accept or reject those recommendations
9	c	Joint sittings are for ordinary and financial Bills only - never for Money Bills or Constitutional Amendment Bills
10	b	The Speaker . By convention the chairman has been drawn from the Opposition since 1967. Asked in 2015
11	d	Article 253 - the route by which ILO conventions are domesticated. Asked in 2015
12	b	Statement 2 is wrong - the Chairman is the Vice-President , who is not a member of the House
13	a	The power is not discretionary - it is exercised on the advice of the Council of Ministers . Options (b), (c) and (d) are all correct statements. Asked in 2023
14	b	Nominated members do not vote in the presidential election but do participate in impeachment
15	b	Under Article 161 a Governor cannot pardon a death sentence , nor deal with court-martial sentences. Both remain with the President under Article 72
16	b	The order is judgment → review under Article 137 → curative petition (<i>Rupa Ashok Hurra</i> , 2002). Asked in 2023
17	c	Borrowed from Canada ; the opinion is not binding , and under Article 143(1) the Court may decline to answer
18	b	Tribunals are permissible but cannot oust the High Courts' Articles 226 and 227 jurisdiction
19	c	Entry 24 of the Concurrent List - the constitutional basis of the EPF Act. Entry 22 is trade unions and disputes; Entry 23 is social security and insurance
20	b	Article 248 vests residuary powers in Parliament , following Canada . In the USA they rest with the states
21	b	Article 279A , inserted by the 101st Amendment, 2016 ; decisions by a three-fourths weighted majority, the Centre holding one-third of the votes
22	b	20 lakh . Do not confuse this with the 10 lakh threshold for a Metropolitan Planning Committee

Q	Ans	Explanation
23	b	In proportion to population for SCs and STs; it is women who get not less than one-third
24	c	Thungon's signature recommendations. Asked in 2023 . Option (a) is Ashok Mehta
25	c	10 lakh or more , under Article 243-ZE
26	c	Advisory only . This is the classic <i>advisory versus binding</i> trap
27	b	41% - reduced from the 14th Commission's 42% to account for the reorganisation of Jammu and Kashmir. Asked in 2023
28	b	The Governor , under Articles 243-I for panchayats and 243-Y for municipalities. Asked in 2023
29	c	NCBC received constitutional status under Article 338B by the 102nd Amendment, 2018 . NITI Aayog is executive ; NHRC and CIC are statutory
30	b	Environment, Forest and Climate Change . CAMPA is a fund for compensatory afforestation. Asked in 2023

THINK LIKE UPSC · SCORE INTERPRETATION

Questions 1, 10, 11, 13, 16, 19, 24, 27, 28 and 30 are **reconstructions of questions actually asked** in 2015 or 2023. If you got fewer than seven of those ten, re-read the relevant chapter before moving to Module 2 - these are the highest-probability recurrences in the whole of Polity.

13. Active Recall - Whole of Module 1

Answer aloud before checking. Repeat on day 2, day 7 and day 21.

- 1 Which four benefit heads does Article 41 generate, and name a statute for each.
- 2 Which Article gives a living wage, and is it enforceable? Which case made underpayment a Fundamental Rights violation instead?
- 3 Name six items of expenditure charged on the Consolidated Fund of India, and state the principle that unites them.
- 4 Where does provident fund money sit - Consolidated Fund, Contingency Fund or Public Account? Why?
- 5 Which House can a Money Bill start in, how long may the other House hold it, and who certifies it?
- 6 Is the Governor's ordinance power discretionary? What two real constraints exist?
- 7 State the remedies ladder ending in a curative petition, and two grounds for one.
- 8 Give Entries 22, 23 and 24 of the Concurrent List.
- 9 Five routes by which Parliament may legislate on a State subject - name the Articles.
- 10 20 lakh and 10 lakh - which threshold belongs to which body?
- 11 Four-fifths and two-thirds - which planning committee has which?
- 12 Which committee's signature is "two-tier", and whose is "District Planning Committee"?
- 13 Finance Commission versus State Finance Commission: Article, appointing authority, and what each divides.
- 14 Are Finance Commission recommendations binding? What is NITI Aayog's legal status?
- 15 Classify these: NITI Aayog, NHRC, EPFO, Finance Commission, NCBC, CIC.
- 16 Which two amendments are the "bundles" - one from 1976 and one from 1978? What did each do?

14. Module 1 One-Minute Revision - All Thirteen Chapters

ONE-MINUTE REVISION

FOUNDATIONS Gol Act 1935 largest source · adopted **26 Nov 1949**, commenced **26 Jan 1950** · 395 → ~470 Articles · Preamble amended **once**, 42nd 1976 adding **Socialist, Secular, Integrity** · *Kesavananda* 1973 = Preamble is part + basic structure + overrules *Golaknath* · Article 1 **Union of States**.

TERRITORY AND CITIZENSHIP Art 2 outside, Art 3 inside · State's views **not binding**, simple majority · 28 States, 8 UTs · acquisition by birth, descent, registration, naturalisation, territory · **EPF follows employment, not citizenship**.

FUNDAMENTAL RIGHTS Six; property out by **44th 1978** → Art 300A · citizens-only **15, 16, 19, 29, 30** · bind private persons **15(2), 17, 23, 24 · 19(1)(c)** ladder: **form** is a FR, register statutory, recognition not a FR, **strike is a legal right** (*All India Bank Employees' Association* 1962) · **Art 23** below-minimum-wage = **forced labour** (*PUDR* 1982) · **Art 24** below 14 in **factory, mine, hazardous** · Art 21A **6-14**, Art 45 under-6 · **20 and 21 never suspended** · **226 wider than 32** · Prohibition prevents, **Certiorari cures** · **EPFO is State under Art 12**.

DPSP Ireland; Art 37 **not enforceable** · **Art 41** unemployment, old age, sickness, disablement · **42** humane conditions + maternity · **43 living wage** (asked 2023) · **43A** worker participation · **39(d)** equal pay · **44 UCC** (asked 2025) · **50** separation of judiciary · 43B co-operatives 97th · **11 Fundamental Duties**, Swaran Singh recommended 8, 42nd added 10, 86th added the 11th.

PARLIAMENT LS 550/543, RS 250/245 with **12 nominated** · RS permanent, **one-third retire every 2 years**, Chairman = VP, **not a member** · **Money Bill** LS only, RS **14 days**, **Speaker certifies**, no joint sitting · **Joint sitting 3 times**, not for Money or Amendment Bills · **Charged**: President, Speaker and Chairman, debt charges, SC judges' salaries, **HC judges' pensions**, CAG, UPSC, court decrees · **Provident funds sit in the Public Account** · **PAC 22 = 15 + 7**, **Speaker appoints chairman** · Estimates 30 all LS · **Art 253** treaties = ILO route · anti-defection **Tenth Schedule, 52nd 1985**, split deleted by **91st 2003**.

EXECUTIVE President elected by **elected** members only; **nominated members vote in impeachment** · impeachment for **violation of the Constitution**, two-thirds of total membership · **Art 123** ordinance, **6 weeks**, *D. C. Wadhwa* repromulgation is fraud · **Governor's ordinance power is NOT discretionary** (asked 2023) · Governor **cannot pardon death sentence** · Ministers capped at **15%** by 91st.

JUDICIARY SC **34 judges** · retire **65 / 62** · collegium 1993 and 1998, **NJAC struck down 2015** · Art 131 exclusive federal, 136 SLP, **143 advisory from Canada, non-binding**, 137 review · **curative petition** *Rupa Ashok Hurra 2002*, after review, natural justice or bias, three senior-most judges (asked 2023) · **323A/323B** 42nd; *L. Chandra Kumar* 1997 protects **226/227**.

CENTRE-STATE Union 100, State 61, Concurrent 52 · **residuary with Parliament, Canadian model** · **Entries 22, 23, 24** · Art 254 central law prevails, 254(2) exception · State-list routes **249, 250, 252, 253, 356** · **GST Council Art 279A**, 101st 2016, **three-fourths** weighted · Inter-State Council **263, advisory** · Sarkaria, Punchhi.

LOCAL GOVERNMENT 73rd Part IX, 243-243-O, **Eleventh Schedule 29; 74th Part IXA, 243-P-243-ZG, Twelfth Schedule 18** · intermediate tier optional below **20 lakh** · **SC/ST proportional, women not less than one-third** · 5-year term, elections within 6 months of dissolution · **DPC 243-ZD, four-fifths; MPC 243-ZE, two-thirds, 10 lakh** (asked 2023) · **Balwant Rai Mehta three-tier, Ashok Mehta two-tier, Singhvi constitutional status, Thungon DPC** (asked 2023) · PESA 1996.

FINANCE COMMISSIONS Art 280, **President**, every 5 years, Chairman + 4, **advisory not binding** · **15th FC** N. K. Singh, 2021-26, **41% vertical, income distance 45%**, area 15, population 15, demographic performance 12.5, forest 10, tax effort 2.5; rural local body grants **40% untied / 60% tied** (asked 2023) · **16th FC** Panagariya, 2026-31 - **VERIFY** · **SFC = Governor, Arts 243-I and 243-Y** (asked 2023).

BODIES Constitutional: EC 324, UPSC 315, FC 280, CAG 148, AG 76, NCSC 338, NCST 338A, **NCBC 338B (102nd, 2018)**, Inter-State Council 263, GST Council 279A · Statutory: NHRC 1993, **CIC RTI 2005**, CVC 2003, Lokpal 2013, **EPFO 1952**, ESIC 1948, PFRDA, IRDAI · Executive: **NITI Aayog 2015 Cabinet resolution** · CAG and CEC removed **like a SC judge**, tenure **6 years or 65** · RTI **30 days / 48 hours**, CIC + up to **10**, 2019 amendment moved term-setting to the Centre.

AMENDMENTS AND EMERGENCY Three routes; **ratification by half the States** for the Seventh Schedule, courts, President's election, Art 368 · 42nd 1976 mini-Constitution · 44th 1978 · **352** war, external aggression, armed rebellion, approve in **1 month** by special majority; **356** approve in **2 months**, max **3 years**, *Bommai* 1994; **360 never used** · **UCC Art 44 is a DPSP**; Goa, Uttarakhand 2024.

GOVERNANCE HARVEST Three-fact rule - **nature, ministry, one number** · CAMPA = MoEFCC · BIRAC = DBT · eSanjeevani = MoHFW telemedicine · DEA = Finance, nodal for external assistance · **National Health Policy 2017 = 2.5% of GDP** · NeVA = Parliamentary Affairs · **CPI-IW = Labour Bureau**, used for dearness allowance · **PLFS = MoSPI**.

15. Module 1 Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET

THE LABOUR SPINE OF THE CONSTITUTION Concurrent List **Entry 22** trade unions and disputes · **Entry 23** social security and insurance · **Entry 24** welfare of labour incl. **provident funds**

Enforceable: Art **23** forced labour · Art **24** child labour under 14 in factory, mine, hazardous **Not enforceable:** Art **39(d)** equal pay · **41** unemployment, old age, sickness, disablement · **42** humane conditions + maternity · **43** living wage · **43A** worker participation **Art 41 → statutes:** old age = EPS 1995 · sickness = ESI 1948 · disablement = EC Act 1923 · maternity = MB Act 1961 · living wage = Minimum Wages 1948

THE FOUR THINGS ASKED IN 2023 Article **24** · Article **43** · strike is **not** a FR · **Thungon, DPC/MPC, 15th FC, SFC**, curative petition, Governor's ordinance, Consolidated Fund, CAMPA, BIRAC, eSanjeevani, DEA, 2.5% of GDP

NUMBERS 26 Nov 1949 / 26 Jan 1950 · 395 → ~470 · 6 FRs · 11 duties · 34 SC judges · 65 / 62 retirement · 550 / 250 · 12 nominated · 14 days money bill · 3 joint sittings · PAC 22 = 15+7 · Estimates 30 · 15% ministers · 6 weeks ordinance · 24 hours arrest · 3 months preventive detention · **20 lakh** intermediate tier · **10 lakh** MPC · **4/5 DPC, 2/3 MPC** · 29 and 18 Schedule subjects · **41% and 45%** · 1 month / 2 months / 3 years emergency · 2.5% of GDP health

AUTHORITY PAIRS - the swap traps Finance Commission = **President**, Art 280 · State FC = **Governor**, Arts 243-I / 243-Y Money Bill certified by the **Speaker** · PAC chairman appointed by the **Speaker** Art 32 = FR only · **Art 226 = wider** Prohibition = **prevent** · Certiorari = **cure** Inter-State Council = **advisory** · GST Council = **binding**, 3/4 Finance Commission = **constitutional** · NITI Aayog = **executive** · NHRC, CIC, **EPFO = statutory** · NCBC = **constitutional**, **338B**

ONE-WORD SIGNATURES Balwant Rai Mehta **three-tier** · Ashok Mehta **two-tier** · G. V. K. Rao **district officer** · L. M. Singhvi **constitutional status** · **Thungon DPC** · Sarkaria and Punchhi **Centre-State**

AMENDMENT BUNDLES 42nd 1976: Socialist, Secular, Integrity + Fundamental Duties + 39A, 43A, 48A + tribunals · **44th 1978:** property out, **20 and 21 protected**, armed rebellion · **86th 2002:** 21A, Art 45 recast, 11th duty · **97th 2011:** co-operatives · **101st 2016:** GST · **103rd 2019:** EWS

EPFO IN ONE LINE Statutory body, EPF & MP Act **1952**, Ministry of **Labour and Employment**, tripartite **Central Board of Trustees; "State" under Art 12**; public authority under **RTI**; Section **7A** inquiry is quasi-judicial; writ under **Art 226**; constitutional basis **Entry 24, Concurrent List**

ACTION · MODULE 1 IS COMPLETE - WHAT COMES NEXT

Thirteen chapters, 32.5 planning marks, roughly 28 hours of study. **Module 1 is now closed.**

Module 2 - Labour Laws and Industrial Relations is next, and it is the single largest block in the paper. It opens with the Act-to-Code map and the Trade Unions Act, 1926, and it carries the **Master Numbers Table** that the Blueprint identified as the highest-density scoring opportunity in the entire examination - six of twenty labour questions in 2023 were pure numbers.

Everything you learned in Chapters 1.3, 1.4 and 1.8 is load-bearing for it: Articles 23 and 24, Articles 39 to 43A, and Entries 22 to 24 of the Concurrent List.